

25PSCV01215 25PSCV01215

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-08-20

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CH%2C08%2F20%2F2026

Source SHA-256: f8f1810391ed5fa8946b5e9db5c455d3b71ee8da9c5e7892de3d14aefa449e7a

Case Number: 25PSCV01215 Hearing Date: August 20, 2026 Dept: H

Tricia Duncan Hassel v. Raffaele Corbisiero, M.D., et al, Case No. 25PSCV01215

ORDER ON MOTIONS TO COMPEL AND MOTION FOR RELIEF FROM WAIVER OF OBJECTIONS

1. Defendant Raffaele Corbisiero, M.D.'s motions to compel form interrogatories, request for production of documents, special interrogatories are GRANTED. Sanctions are awarded in the reduced amount of \$1684.95.

2. Plaintiff's request for relief from waiver of objections is DENIED.

Background

Plaintiff Tricia Duncan Hassel ("Plaintiff") alleges as follows:

On or about January 8, 2024, Plaintiff underwent an umbilical hernia repair surgery. Plaintiff experienced complications, including a ruptured bowel and sepsis.

On April 3, 2025, Plaintiff filed a complaint, asserting a cause of action against Raffaele M. Corbisiero, M.D. ("Corbisiero"), Emanate Health Foothill Presbyterian Hospital and Does 1-15 for Medical Negligence.

A Case Management Conference is set for August 20, 2026.

Legal Standards

Where a party fails to serve timely responses to discovery requests, the court may make an order compelling responses. (Code Civ. Proc., §§ 2030.010, 2030.290, 2031.300, 2033.280; *Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403.) A party that fails to serve timely responses waives any objections to the request, including ones based on privilege or the protection of attorney work product. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a).) Unlike a motion to compel further responses, a motion to compel responses is not subject to a 45-day time limit and the propounding party has no meet and confer obligations. (*Sinaiiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404.)

If a propounding party moves for and obtains a court order compelling a response, the court shall impose monetary sanctions against the party failing to timely respond to interrogatories and demands for inspection unless that party acted with substantial justification or the sanction would otherwise be unjust. (Code Civ. Proc., §§ 2030.010, 2030.290, 2031.300, 2033.28; *Sinaiko Healthcare Consulting, Inc.*, supra, 148 Cal.App.4th at 404.)

Code of Civil Procedure, sections 2030.290, 2031.300, and 2033.280 provide that a party who fails to timely respond to interrogatories, inspection demands, and request for admission waives all objections to the interrogatories and demands, as well as any right to exercise the option to produce writings under section 2030.230 in response to the interrogatory. (Code Civ. Proc., §§ 2030.290, subd. (a); 2031.300, subd. (a).) The court, on motion, may relieve that party from its waiver on the court's determination that: (1) the party has subsequently served a response that is in substantial compliance with the Discovery Act, and (2) the party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., §§ 2030.290, subd. (a); 2031.300, subd. (a).)

Discussion

1. Motions to Compel Initial Discovery

On October 29, 2025, Defendant Raffaele M. Crobisiero, M.D., served Special Interrogatories, Set One; Request for Production of Documents, Set One; and Form Interrogatories, Set One on Plaintiff. On December 1, 2025, Plaintiff substituted counsel, and new counsel requested a 45-day extension to respond, which would have moved the deadline to January 15, 2026, but Defendant did not grant the request.

On January 14, 2026, Plaintiff's counsel requested an additional 30 days; Defendant did not grant that request. Although the parties continued to discuss the outstanding discovery, Plaintiff's counsel did not provide responses.

On March 25, 2026, Defendant filed the present motions to compel.

On May 29, 2026, Plaintiff served responses to the discovery at issue.

In reply, Defendant does not dispute that Plaintiff has now provided answers, but argues that Plaintiff must serve complete, objection-free responses to the form interrogatories and that Plaintiff and/or her counsel should pay sanctions.

Here, under these circumstances, Plaintiff waived her objections because she served her responses, containing objections, after the deadline. Plaintiff has filed a motion seeking relief from waiver of objections, but, as addressed below, the Court will deny that request.

Accordingly, Plaintiff is ordered to serve objection-free responses to Corbisier's Form Interrogatories, Set One; Request for Production of Documents, Set One; and Special Interrogatories, Set One, without objections, within 20 days of the notice of ruling.

Sanctions

Sanctions are mandatory in connection with motions to compel responses to interrogatories and requests for production of documents against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel. (Code Civ. Proc. §§ 2030.290, subd. (c), 2030.300, subd. (d), 2031.300, subd. (c), and 2031.310, subd. (h).) However, sanctions are not mandatory if the court "finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (*Id.*)

Defendant seeks \$1,561.65 per motion to compel filed. Defendant has filed 3 motions to compel as discussed above.

Defendant's counsel, Adam R. Jame, in his declaration asserts that his billing rate is \$300 per hour. (James Decl. ¶ 10.) In his declaration, counsel states that as to each motion, he spent 1.5 hours preparing each motion, will spend 1.5 hours reviewing the opposition and drafting a reply, and will spend 2 hours toward the hearing, "including travel to and from the courthouse." He also notes that the filing fee for each motion was \$61.65.

Utilizing a Lodestar approach, and in view of the totality of the circumstances (including the fact that counsel can appear remotely for the hearing), the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the three motions is \$1,684.95 (i.e., 5 hours at \$300 per hour plus \$184.95 in filing fees).

Accordingly, the Court awards Defendant's request for sanctions in the amount of \$1684.95 against Plaintiff and her attorney of record.

2. Motion for Relief from Waiver

Plaintiff moves the Court for an order relieving her from any waiver of objections to Corbisiero's Form and Special Interrogatories and Request for Production, Sets One, propounded upon her on October 29, 2025, on the basis that her failure to serve timely responses resulted from mistake, inadvertence, or excusable neglect and that she has subsequently served responses in substantial compliance with the Discovery Code.

Here, the Court finds that on May 29, 2026, Plaintiff served responses to the subject discovery in substantial compliance with the Discovery Act. However, the Court cannot identify any mistake, inadvertence, or excusable neglect that explains Plaintiff's failure to serve timely responses and, in particular, the lengthy delay associated with the responses.

The Court certainly appreciates, and has taken into account, the fact that Defendant did not grant any of Plaintiff's requested extensions—even when Plaintiff's newly substituted counsel sought a reasonable extension on December 1, 2025. However, Plaintiff did not provide discovery responses until May 29, 2026—long after the initially sought 45-day extension and even beyond the subsequently requested 30-day further extension. While Plaintiff's counsel claims that defense counsel failed to respond meaningfully to communications, correspondence from February 2026, shows that defense counsel did send emails and left voicemails in attempts to reach attorney Gene H. Shioda regarding the discovery. Moreover, the motions to compel were not filed until March 25, 2026, and the motion seeking relief from waiver was not filed until June 2, 2026.

Under the circumstances—most notably, the considerable delay in providing discovery responses—the Court denies Plaintiffs' request for relief from waiver of objections.